compelled to subsidize political and ideological activities to which they object.

Second, even if the SEIU's statistics are accurate, it does not follow that it was proper for the union to charge objecting nonmembers 56.35%—or any other particular percentage—of the special assessment. Unless it is possible to determine in advance with some degree of accuracy the percentage of union funds that will be used during an upcoming year for chargeable purposes—and the SEIU argues that this is not possible—there is at least a risk that, at the end of the year, unconsenting nonmembers will have paid either too much or too little. Which side should bear this risk?

The answer is obvious: the side whose constitutional rights are not at stake. "Given the existence of acceptable alternatives, [a] union cannot be allowed to commit dissenters' funds to improper uses even temporarily." *Ellis*, 466 U. S., at 444. Thus, if unconsenting nonmembers pay too much, their First Amendment rights are infringed. On the other hand, if unconsenting nonmembers pay less than their proportionate share, no constitutional right of the union is violated because the union has no constitutional right to receive any payment from these employees. See *Davenport*, 551 U. S., at 185. The union has simply lost for a few months the "extraordinary" benefit of being empowered to compel nonmembers to pay for services that they may not want and in any event have not agreed to fund.

As we have noted, by allowing unions to collect any fees from nonmembers and by permitting unions to use opt-out rather than opt-in schemes when annual dues are billed, our cases have substantially impinged upon the First Amendment rights of nonmembers. In the new situation presented here, we see no justification for any further impingement. The general rule—individuals should not be compelled to subsidize private groups or private speech—should prevail.

Public-sector unions have the right under the First Amendment to express their views on political and social is-

sues without government interference. See, *e. g.*, *Citizens United* v. *Federal Election Comm'n*, 558 U. S. 310 (2010). But employees who choose not to join a union have the same rights. The First Amendment creates a forum in which all may seek, without hindrance or aid from the State, to move public opinion and achieve their political goals. "First Amendment values [would be] at serious risk if the government [could] compel a particular citizen, or a discrete group of citizens, to pay special subsidies for speech on the side that [the government] favors." *United Foods*, 533 U. S., at 411. Therefore, when a public-sector union imposes a special assessment or dues increase, the union must provide a fresh *Hudson* notice and may not exact any funds from nonmembers without their affirmative consent.[9]

---

[9] Contrary to JUSTICE SOTOMAYOR's suggestion, our holding does not venture beyond the scope of the questions on which we granted review or the scope of the parties' dispute. The second question on which we granted review broadly asks us to determine the circumstances under which a State may deduct from the pay of nonunion employees money that is used by a union for general electioneering. See Pet. for Cert. (i) ("May a State, consistent with the First and Fourteenth Amendments, condition continued public employment on the payment of union agency fees for purposes of financing political expenditures for ballot measures?"). Our holding—that this may be done only when the employee affirmatively consents—falls within that question.

Our holding also addresses the primary remaining dispute between the parties, namely, the particular procedures that must be followed on remand in order to provide adequate assurance that members of the class are not compelled to subsidize nonchargeable activities to which they object. See *supra*, at 307–308. Petitioners argue strenuously that these procedures must be narrowly tailored to minimize intrusion on their free speech rights. See Brief for Petitioners 11–17. We see no sensible way to address this dispute without confronting the question whether, in the particular context present here, an opt-out regime suffices.

JUSTICE SOTOMAYOR would apparently have us proceed on the *assumption* that an opt-out regime is permitted. She would then have us decide what sort of opt-out procedures would be sufficient if such a regime were allowed at all. But that is a question that simply cannot be answered. It would be like asking what sort of procedural requirements would be

* * *

The judgment of the Ninth Circuit is reversed, and the case is remanded for further proceedings consistent with this opinion.

It is so ordered.

JUSTICE SOTOMAYOR, with whom JUSTICE GINSBURG joins, concurring in the judgment.

When a public-sector union imposes a special assessment intended to fund solely political lobbying efforts, the First Amendment requires that the union provide nonmembers an opportunity to opt out of the contribution of funds. I therefore concur in the Court's judgment.

I concur only in the judgment, however, because I cannot agree with the majority's decision to address unnecessarily significant constitutional issues well outside the scope of the questions presented and briefing. By doing so, the majority breaks our own rules and, more importantly, disregards principles of judicial restraint that define the Court's proper role in our system of separated powers.

I

The Political Fight-Back Fund was to be used by Service Employees International Union, Local 1000 (SEIU), "specifically in the political arenas of California" to defeat perceived antiunion initiatives and to elect a sympathetic Governor and legislature. App. 25; see also *id.*, at 31. As the majority explains, such political efforts are not "ger-

---

required if the government set out to do something else that the First Amendment flatly prohibits—for example, requiring prepublication approval of newspapers.

There is also no merit in JUSTICE SOTOMAYOR's and JUSTICE BREYER's comments about prior precedent. This case concerns the procedures that must be followed when a public-sector union announces a special assessment or midyear dues increase. No prior decision of this Court has addressed that question, and *Hudson* says not one word on the subject.